

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel as submitted on April 15, 2026. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of the Order to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court also orders Withdrawing Counsel to provide notice of the Case Management Conference calendared for June 18, 2026 at 8:30 a.m. in Department 16, along with a notification that Plaintiff or new counsel is required to appear.
5. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order and the Change of Address form (MC-040).

20. 9:00 AM CASE NUMBER: MSC20-00441

CASE NAME: MILZ VS. SILVERA

***HEARING ON MOTION IN RE: ENTRY OF JUDGMENT OF DISMISSAL**

FILED BY: MILZ, MARK

TENTATIVE RULING:

Before the Court is Plaintiffs Mark Milz and Milz Development & Construction's Motion for Entry of Judgment of Dismissal.

Plaintiff's Motion for Entry of Final Judgment is **granted** with modification as discussed below.

Procedural Background

Plaintiffs filed their Complaint on March 2, 2020. The parties proceeded to litigate the matter. On September 13, 2024, Defendants M. Marketta Silvera and L. Rondal Silvera filed a motion for summary judgment. That same date, Defendants Golden Gate Sotheby's International Realty and Lauren Holloway also filed a motion for summary judgment, or in the alternative, summary adjudication. Both motions were unopposed.

On October 30, 2024, the Court issued two separate minute orders after hearing argument on the motions granting summary judgment on the two motions. Thereafter, the Silvera Defendants submitted an order after hearing, which the Court signed on November 20, 2024, and filed on November 22, 2024, indicating that the Silvera Defendants' Motion for Summary Judgment was granted. It also attached and incorporated the Court's minute order from October 30, 2024. Defendants Golden Gate Sotheby's International Realty and Lauren Holloway never submitted any such order, despite California Rules of Court, Rule 3.1312's requirement to do so.

None of the Defendants sought entry of a final judgment based on the granting of summary judgment in their favor. Plaintiffs now move the Court to enter a final judgment so that they can properly take their appeal as to the granting of the summary judgments.

The Silvera Defendants filed a 'limited opposition' indicating that they "have no objection to entry of judgment in their favor provided that the Court retain jurisdiction to award attorneys' fees." The Court notes that the Silvera Defendants filed a motion for attorney fees on February 20, 2026, which

is currently scheduled to be heard on July 1, 2026.

Defendants Golden Gate Sotheby's International Realty and Lauren Holloway have not filed any documents in opposition.

As of the time of the drafting of this TR, Plaintiffs have not filed a reply – which the Court takes to mean that they do not oppose the Silvera Defendant's proviso that the Court retain jurisdiction to award attorneys' fees.

Analysis

"A judgment is the final determination of the rights of the parties in an action or proceeding." (Code of Civ. Proc. § 577.) "The general test for determining whether the judgment is final is 'that where no issue is left for future consideration except the fact of compliance or noncompliance with the terms of the first decree, that decree is final, but where anything further in the nature of judicial action on the part of the court is essential to a final determination of the rights of the parties, the decree is interlocutory.'" (*Bakewell v. Bakewell* (1942) 21 Cal.2d 224, 227 quoting *Lyon v. Goss* (1942) 19 Cal.2d 659.)

"It is well established that there can be but one judgment in an action as between the same parties and that is a judgment which determines all matters in controversy between them in the action." (*Pastor v. Younis* (1965) 238 Cal.App.2d 259, 264.)

"An order granting a motion for summary judgment, entire or partial, is a preliminary nonappealable order; appeal must be taken from the final judgment ultimately entered in the case." (*King v. State of California* (1970) 11 Cal.App.3d 307, 310.)

Here, summary judgment was granted in favor of each of the Defendants – thereby ending the dispute between the parties. Accordingly, Plaintiffs are entitled to have a 'final judgment' entered finalizing the Court's decision to properly perfect their ability to appeal.

The Silvera Defendants do not oppose entry of a final judgment. They do, however, want to make sure that the Court retains jurisdiction to rule on their pending motion for attorneys' fees and costs. If "a judgment reserves jurisdiction to award attorney fees, that portion of the judgment is nonfinal and nonappealable." (*P R Burke Corp. v. Victor Valley Wastewater Reclamation Authority* (2002) 98 Cal.App.4th 1047, 1053.)

To ensure there is no argument regarding the Court's ability to rule on the pending motion, the Court will grant the request to enter a final judgment in favor of Defendants, with the explicit reservation of jurisdiction to rule on the Silvera Defendant's motion for attorneys' fees and costs.

Conclusion

Plaintiff's Motion for Entry of Final Judgment is **granted**. Plaintiffs shall submit a new [Proposed] Judgment of Dismissal that includes the following language. "The Court has not addressed the issues related to the Silvera Defendants request for attorneys' fees and costs and is reserving jurisdiction to determine such issues."

21. 9:00 AM CASE NUMBER: MSC21-00637

CASE NAME: OSCAR CORONA VS. JOSHUA WARD

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM (CONTINUED FROM 02.05.26)**

FILED BY:

TENTATIVE RULING:

The Court has reviewed the Status Report filed by the Plaintiff in this case on February 3, 2026 and the minute order prepared by Judge Weil on February 5, 2026. Lead counsel are ordered to appear via Zoom to provide the Court with a status report on the final distribution of funds in this matter.

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: C23-01493

CASE NAME: KWAMINA DAVIS VS. DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES OF PLAINTIFF KWAMINA DAVIS TO SPECIAL INTERROGATORIES, SET ONE**

FILED BY: DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 22, 23 and 24. The following discovery motions are scheduled to be heard on by the Court on May 27, 2026 at 9:00 a.m. in Department 16:

1. Defendant Diamond Ridge Post Acute LLC's ("Defendant") Motion to Compel Further Responses of Plaintiff Kwamina Davis ("Kwamina") to Special Interrogatories, Set One and Request for Sanctions in the amount of \$869 filed on November 18, 2025;
2. Defendant's Motion to Compel Further Responses of Kwamina to Request for Production, Set One and Request for Sanctions in the amount of \$760 filed on November 18, 2025;
3. Defendant's Motion to Compel Further Responses of Plaintiff Robert Davis ("Robert") to Form Interrogatories, Set One and for Sanctions in the amount of \$2,200 filed on November 18, 2025

The Court also has scheduled hearings on the following discovery motions in Department 16 on September 23, 2026 at 9:00 a.m.:

4. Defendant's Motion to Compel Further Responses of Robert to Special Interrogatories, Set One and for sanctions.
5. Defendant's Motion to Compel Further Responses of Rober to Request for Production, Set One and for Sanctions;
6. Defendant's Motion to Compel Further Responses of Kwamina to Form Interrogatories, Set